

Tax Parcel Number: 335-8.00-36.07

Prepared By and Return To:
Jonathan E. Horner, Esq.
20184 Phillips Street
Rehoboth Beach, DE 19971

**DECLARATION OF EASEMENT TOGETHER WITH AN
IRREVOCABLE POWER OF ATTORNEY COUPLED WITH AN INTEREST**

This Declaration of Easement Together With An Irrevocable Power Of Attorney Coupled With An Interest (this "**Declaration of Easement**") made effective this 26th day of June, 2025, is reserved by LEWES ATTAINABLE HOUSING, LLC, a Delaware limited liability company, its successors and assigns ("**Declarant**").

RECITALS

WHEREAS, Declarant is the owner of certain real property located in the City of Lewes, Sussex County, Delaware, which property is more particularly described in **Exhibit "A"** attached hereto and made a part hereof; and

WHEREAS, said property is to be submitted by Declarant to a plan of condominium ownership under the Delaware Uniform Common Interest Ownership Act, 25 Del. C. §81-101, et seq., as amended (hereinafter referred to as the "**Act**"), by, and in accordance with, the Declaration Of Dutchman's Harvest Condominium (the "**Declaration**") to be filed of record in the Office of the Recorder of Deeds, in and for, Sussex County, Delaware (the "**Recorder's Office**"), after the filing of this Declaration of Easement; and

WHEREAS, any term or definition not otherwise expressly defined herein shall have the meaning and definition as provided in the Declaration; and

WHEREAS, as of the date hereof, Declarant has constructed the Initial Unit(s); and

WHEREAS, the Declaration, in Sections 5 and 6 of the Declaration, captioned "Expansion" and "Adjustments to Percentage Interests", respectively, reserves to Declarant the right, *inter alia*, by and unto itself to (1) annex into the land and the improvements constituting the Property of the Condominium; and thereby to submit to each and every of the provisions of the Declaration and the Act and the Condominium Regime, all or any portion of the Expansion Area, including, but not limited to, the Expansion Unit(s), and (2) change the location of any one or more of the proposed Expansion Unit(s) in order to improve views to and from the Units, improve parking areas and harmonize the Property to the sewer, water and other utilities service distribution plans; and

WHEREAS, it is intended that the Common Elements as defined in the Declaration be subject to this Declaration of Easement in order to facilitate the possible minor relocation of said

Units.

NOW, THEREFORE, in consideration of the matters hereinabove set forth:

DECLARATION OF EASEMENT

Declarant hereby reserves the exclusive, free, perpetual right, privilege and easement (but not the obligation) to (1) annex into the land and the improvements constituting the Property of the Condominium; and thereby to submit to each and every of the provisions of the Declaration, the Act and the Condominium Regime, all or any portion of the Expansion Area, including, but not limited to, any one or more of the Expansion Unit(s), (2) change the location of any one or more of the Expansion Unit(s) in order to improve views to and from the Units, improve parking areas and harmonize the Property to the sewer, water and other utilities service distribution plans, (3) construct (i) one or more of the Expansion Unit(s) as delineated on the Declaration Plan, and/or (ii) all of the necessary parking lots, walks and other appurtenances (including, but not limited to, utilities and roadways) requisite to service all or any portion of the Expansion Area, including, but not limited to, any one or more of the Expansion Unit(s), and (4) provide for the necessary ingress and egress to the Expansion Area, including, but not limited to, any one or more of the Expansion Unit(s), together with such other rights, privileges, licenses, easements and rights-of-ways as may be deemed necessary or desirable to submit all or any portion of the Expansion Area, including, but not limited to, any one or more of the Expansion Unit(s), to the Condominium Regime and the Act as contemplated and provided for under the Declaration, Declaration Plan and Bylaws.

This reservation of easement shall be perpetual during the continued existence of the Condominium.

This reservation of easement shall run with the Land and shall be binding upon each Unit Owner and mortgagee of a Unit in the Condominium and their respective heirs, personal representatives, successors and assigns and shall be deemed to have been reserved by the Declarant, its successors and assigns, an irrevocable power of attorney coupled with an interest, to effectuate, execute, acknowledge and deliver any such amendment; and each such Unit Owner and mortgagee shall be deemed to have agreed and covenanted to execute such further instruments, if any, as may be required by the Declarant, its successors or assigns, to properly accomplish the purposes of this Declaration of Easement.

[SIGNATURE PAGE TO FOLLOW]

IN WITNESS WHEREOF, the Declarant has caused its name and its seal to be affixed hereto the day and year first above-written.

**SEALED AND DELIVERED
IN THE PRESENCE OF**

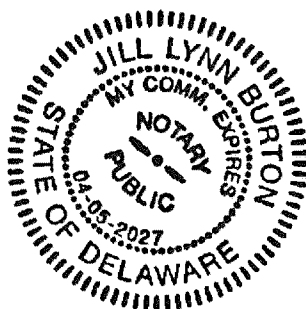
LEWES ATTAINABLE HOUSING, LLC, a Delaware
limited liability company

By: [Signature] (SEAL)
Name: Preston A. Schell
Title: Manager

STATE OF DELAWARE)
) SS.
COUNTY OF SUSSEX)

BETT REMEMBERED, that on the 26th day of June, 202~~2~~⁵, personally came before me, the Subscriber, a Notary Public for the State of Delaware, Preston A. Schell, as Manager of Lewes Attainable Housing, LLC, a Delaware limited liability company, party to this Indenture, known to me personally to be such and acknowledged this Indenture to be their act and deed and the act and deed of the Manager on behalf of the company.

GIVEN under my Hand and Seal of Office, the day and year aforesaid.



Jill Lynn Burton
Notary Public

Jill Lynn Burton
Print Name

My Commission Expires: 4-5-2027

LEGAL DESCRIPTION

ALL that piece or parcel of land, hereinafter described, situate, lying and being on the southeasterly side of Savannah Road and being located in Lewes & Rehoboth Hundred, Sussex County, Delaware, being all of Parcel 36.07, as shown on a plat entitled "Lewes Attainable Housing, LLC. – Dutchman's Harvest," completed by Davis Bowen & Friedel, Inc., dated March 2022; said piece or parcel being more particularly described as follows:

BEGINNING at point formed by the intersection of southeasterly right-of-way line of Savannah Road, at the westerly corner of lands of, now or formerly, Ronald & Carol Garner, as recorded in the Office of the Recorder of Deeds in and for Sussex County and the State of Delaware; said beginning point being coordinated on the Delaware State Grid System as North: 278,060.07 feet, East: 731,987.08 feet; thence,

1) leaving said right-of-way line of Savannah Road and running with said lands of Garner, the following 2 courses and distances, South 70 degrees 30 minutes 18 seconds East 60.11 feet to an iron rod with cap to be set at a point, thence running,

2) South 50 degrees 49 minutes 25 seconds East 223.15 feet to an iron rod with cap to be set at a point at lands now or formerly of Oscar H. III & Mary H. Warrington, thence running,

3) by and with said lands of Warrington the following 2 courses and distances, South 42 degrees 30 minutes 01 seconds West 25.06 feet to a point, thence running,

4) South 50 degrees 53 minutes 25 seconds East 195.19 feet to an iron rod with cap to be set at a point at other lands of Oscar H. III & Mary H. Warrington, thence running,

5) by and with said other lands of Warrington, South 48 degrees 22 minutes 00 seconds East 465.54 feet to a point on the northwesterly line of lands now or formerly of Lewes Senior Living Partners, LLC., thence,

6) running by and with said lands of Lewes Senior Living Partners, LLC., South 42 degrees 06 minutes 29 seconds West 405.56 feet to a point along the northeasterly line of Henlopen Gardens, thence running,

7) by and with the northeasterly line of Henlopen Gardens Subdivision, North 47 degrees 53 minutes 31 seconds West 920.01 feet to a point along the southeasterly right-of-way line of Savannah Road, thence running,

8) by and with said right-of-way line of Savannah Road, North 39 degrees 32 minutes 12 seconds East 268.47 feet to a point, thence,

9) North 38 degrees 48 minutes 16 seconds East 114.01 feet to the point and place of beginning;
CONTAINING 8.604 acres of land, more or less.